
CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

THIS CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT (the "**Agreement**"), dated as of, is made by and between:

- (1) **A:** Modisa Maphanyane for MobiRides
- (2) **B:** _____
- (3) **C:** _____
- (4) **D:** _____
- (5) **E:** _____
- (6) **F:** _____

(Who agree to be bound both collectively and in their own individual rights by this agreement)

RECITALS

- (A) WHEREAS, the parties hereto possess certain confidential and proprietary information; and
- (B) WHEREAS, in connection with the desire of the parties to explore the possibility of entering into a prospective business transaction (the "Potential Transaction"), each party (a "Disclosing Party") is furnishing certain information to the other party (a "Recipient") which is non-public, confidential and/or proprietary in nature. Each party confirms that it may desire and be allowed to examine the other's confidential and proprietary information solely for the purpose of evaluating the Potential Transaction (the "Evaluation") and for no other purpose whatsoever, and acknowledges that such information would not have been available to it but for its undertakings in terms of this Agreement and, in consideration of being furnished with such information, agrees that:

AGREEMENT

1. NON-DISCLOSURE AND RESTRICTION ON USE OF INFORMATION

Information. For purposes of this Agreement "Information" shall mean all non public, confidential or proprietary information including, without limitation, all strategic information, financial statements or projections, business plans, data, business records, customer lists, supplier agreements, partnership or joint venture agreements, marketing plans, employee lists, policies and procedures, information relating to processes, technologies or theory and any or all other information which may be disclosed by the Disclosing Party to the Recipients in accordance with this Agreement howsoever such Information may be disclosed, including, without limiting the foregoing, whether orally, visually or in computer language or other matter on or at the premises of the Disclosing Party, or otherwise.

2. NON-DISCLOSURE OF INFORMATION

(i) The Recipients acknowledge the competitive value and confidential non-public and proprietary nature of the Information and the damages that would result to the Disclosing Party if any such Information were disclosed, therefore, except as expressly permitted in writing by the Disclosing Party, the Information will be kept confidential and shall not, be disclosed by the Recipients to any other party in any manner whatsoever, in whole or in part.

(ii) Notwithstanding the foregoing, the foregoing obligations of confidence shall not apply to information which (A) is or becomes public knowledge and in the public domain by reason of becoming public property other than through an act or omission on the part of the Recipients in breach of this Agreement, or (B) which the applicable Recipient (or Recipients) is able to show came lawfully into its possession from a third party lawfully possessing such Information and which third party is not in any way restricted from disclosing such information.

2.1 Non-disclosure of potential transaction

The Recipients shall not disclose to any third person (including, without limitation, employees and agents of the Disclosing Party):

- (a) the fact that it has received any of the Information;
- (b) that discussions or negotiations are taking place concerning a Potential Transaction; or
- (c) any of the terms, conditions or other facts with respect to any such Potential Transaction, including the status thereof;

unless such disclosure is required by law and then only with prior written notice as promptly as possible to the Disclosing Party.

2.2 Restrictions of use

The Recipients shall not use the Information, directly or indirectly, for any purpose other than the Recipients' evaluation of a Potential Transaction, and such permitted use shall absolutely cease if and when either party has notified the other that it no longer considers the other a candidate for a Potential Transaction. Without limiting the generality of the foregoing:

- (a) except as provided in paragraph 2, the Recipient shall not use the Information in any judicial or administrative proceeding; and
- (b) the Recipients shall not use any of the Information to the detriment of the Disclosing Party, or for the benefit of itself or any third party.

2.3 Title to and return of the Information

The Recipients agree that no licence, either express or implied, is hereby created or granted to the Recipients by the Disclosing Party to use any of the Information other than solely for the purpose of the Evaluation of the Potential Transaction. Title to the Information shall remain in the Disclosing Party, and in the event a Potential Transaction is not consummated, the Information (and all copies, summaries, and notes of the contents thereof) shall upon written request of the disclosing party be returned to the Disclosing Party and any copies of computer software analysis shall at the written request of the disclosing party be destroyed by the Recipients, in accordance with the Disclosing Party's instructions. This is to be confirmed by way of a written statement to that effect upon request by the Disclosing party.

3. RESPONSE TO LEGAL PROCESS

In the event that any one or more of the Recipients, (or anyone to whom it transmits the Information whether or not in compliance with this Agreement) are requested, pursuant to subpoena or other legal process, to disclose any of the Information, that Recipient shall provide the Disclosing Party with immediate notice so that the Disclosing Party may seek a protective order or other appropriate remedy and/or waive compliance with the provision of this Agreement. In the event that such protective order or other remedy is not obtained, or that the Disclosing Party waives compliance with the provisions of this Agreement, the Recipient (or such other person) shall furnish only that portion of the Information which is legally required and shall exercise its best efforts to obtain a protective order or other assurance, satisfactory in form and substance, to the Disclosing Party that confidential treatment will be accorded the Information in accordance with this Agreement.

4. DISCLAIMER OF ACCURACY OF INFORMATION

Although the Disclosing Party has endeavoured to include in the Information that Information known to it which it believes to be relevant and accurate for the purpose of the Evaluation, the Recipients understand that the Disclosing Party has not made or in this Agreement does not make any representation or warranty (whether express or implied) as to the accuracy or completeness of the Information and acknowledges that none of them shall have any liability to the Recipients, its affiliates or related persons or any other firm, person or company arising out of the use of the Information, the evaluation or the Potential Transaction. Nothing in this paragraph shall limit or exclude liability for any misrepresentation made fraudulently.

5. REMEDIES

Without prejudice to any other rights or remedies that the Disclosing Party may have at law or in terms of this Agreement, it is acknowledged by the parties that damages alone will not be an adequate remedy for any breach by either of the parties of the provisions of this Agreement and the Disclosing Party shall be entitled, in addition to any other rights and remedies it may have at law and in terms of this Agreement to the remedies of interdict, specific performance and/or other relief for any threatened or actual breach of the provisions of this agreement.

6. GOVERNING LAW

The construction, interpretation and performance of this Agreement shall be governed by the laws of the Republic of Botswana, excluding its laws relating to the conflict of laws, and any dispute between the parties, unless otherwise stated, shall be resolved by Botswana Courts.

7. SEVERABILITY

The invalidity or unenforceability of any provision hereof shall in no way affect the validity or enforceability of the remainder of this Agreement or any other provision of this Agreement.

8. MODIFICATION / WAIVER

No oral amendments to the provisions of this Agreement or waiver of rights in terms of it shall be effective unless confirmed in writing by the parties, and no delay or failure on the part of either party to insist on compliance with any provision of this Agreement shall constitute a waiver of such party's right to enforce that provision.

9. EVALUATION

The Recipients acknowledge that the Information is being disclosed to them solely for the purpose of enabling them to make an evaluation of the Proposed Transaction. Such disclosure shall not however create or result in any obligation on the part of the Disclosing Party to proceed with the negotiation of a definitive Agreement in respect of the Proposed Transaction.

10. CONFIDENCE AND NON-USE

The obligations of the Recipient to maintain the secrecy and confidentiality of the Information in terms of this Agreement shall survive the termination of any eventual negotiations, whether or not such negotiations result in a definitive Agreement in respect of the Proposed Transaction. The foregoing obligations of confidence and non-use shall apply until such time as the Information passes into the public domain other than by breach of this undertaking by one or more of the Recipients.

10. DURATION OF OBLIGATIONS

The Recipient's obligations as contained in this Agreement shall expire on the third (3rd) anniversary of this Agreement. After such time, the Disclosing Party agrees that it will make no claim against it with respect to the subject matter of this Agreement.

Signed at _____ **on this** _____ **day of** _____ **2026.**

Address: _____ Signed : _____ 

Name : Modisa Maphanyane

Designation : Founder

Witness : _____

B.

Signed at _____ **on this** _____ **day of** _____ **2026.**

Address: _____ **Signed** : _____

Gaborone, Botswana Name : _____

Designation : _____

Witness : _____

Signed at _____ on this _____ day of _____ 2026.

Address: _____ **Signed** : _____

Name : _____

Gaborone **Designation :** _____

Witness : _____

Signed at _____ **on this** _____ **day of** _____ **2026.**

Address: _____ **Signed** : _____

Name : _____

Gaborone **Designation :** _____

Witness : _____

Signed at _____ on this _____ day of _____ 2026.

Address: _____ **Signed** : _____

Name : _____

Gaborone **Designation** : _____

Witness : _____

Signed at **on this** **day of** **2026.**

Address: _____ **Signed** : _____

Name : _____

Gaborone **Designation** : _____

Witness : _____